

Camp Property Rental Liability Waiver

1 | # Camp Property Rental Liability Waiver and Assumption of Risk

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3 | Flanagan Pine Branch Trust

4 | Camp Property: 321 Phillips Way, Ellsworth, Maine 04605

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6 | This Camp Property Rental Liability Waiver and Assumption of Risk (“Waiver”) must be signed before any rental, guest stay, or non-beneficiary use of the Camp Property. Each adult user must sign for themselves. A parent or legal guardian must sign for each minor.

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8 | ## 1. Parties Released

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10 | For purposes of this Waiver, the “Released Parties” include the Flanagan Pine Branch Trust, its current and future Trustees, beneficiaries, family members, agents, representatives, heirs, successors, and assigns.

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12 | ## 2. Acknowledgment of Inherent Risks

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14 | I understand and agree that use of the Camp Property involves inherent and unavoidable risks. These risks include, but are not limited to:

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16 | 1. Slippery, uneven, sharp, or unstable rocks, ledges, shoreline areas, paths, steps, docks, decks, and other walking surfaces.

17 | 2. The lake, waterfront, dock, swimming areas, boating areas, changing water levels, currents, wakes, cold water, underwater hazards, and sudden weather changes.

18 | 3. Swimming, wading, fishing, boating, kayaking, canoeing, paddleboarding, and use of any other watercraft or waterfront equipment.

19 | 4. Falls, slips, trips, drowning, near-drowning, collision, capsizing, entrapment, cuts, head injury, broken bones, hypothermia, illness, property loss, property damage, serious personal injury, or death.

20 | 5. Risks caused by my own actions, the actions of other users or guests, weather, natural conditions, wildlife, water conditions, equipment condition, or other known or unknown hazards.

21 |

22 | I specifically acknowledge that the rocks and lake can be dangerous, that

there is no lifeguard on duty, and that entering the water or using kayaks, canoes, paddleboards, boats, or other watercraft may result in serious injury or death.

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24 | ## 3. No Lifeguard; Water Use at Own Risk

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26 | I understand and agree that there is no lifeguard, water safety personnel, rescue personnel, or medical personnel provided by the Released Parties. Any swimming, waterfront activity, boating, kayaking, canoeing, paddleboarding, or use of any watercraft is entirely at my own risk.

27 |

28 | I am responsible for determining whether I and any minors or guests under my supervision are physically able, properly equipped, and sufficiently skilled to participate in any activity at or near the Camp Property. I agree that all users should wear properly fitted personal flotation devices when using any watercraft or when otherwise appropriate for safety.

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30 | ## 4. Assumption of Risk

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32 | I voluntarily accept and assume all risks of injury, death, property loss, and property damage arising out of or related to my use, rental, occupancy, or presence at the Camp Property, including use of the lake, shoreline, rocks, dock, watercraft, equipment, buildings, grounds, and surrounding areas.

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34 | I accept these risks for myself and for any minors or guests for whom I am responsible.

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36 | ## 5. Release and Waiver of Liability

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38 | To the fullest extent permitted by applicable law, I release, waive, and discharge the Released Parties from any and all claims, demands, causes of action, damages, losses, expenses, attorney's fees, liabilities, or judgments arising out of or related to my use, rental, occupancy, or presence at the Camp Property.

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40 | This release includes, to the fullest extent permitted by law, claims arising from ordinary negligence of any Released Party, premises conditions, waterfront conditions, use of watercraft or equipment, failure to warn, failure to supervise, lack of lifeguard, accident, injury, illness, death, or property damage.

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42 | This Waiver does not release claims that cannot legally be waived under applicable law.

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44 | ## 6. Indemnification

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46 | I agree to defend, indemnify, and hold harmless the Released Parties

from and against any claim, demand, loss, damage, liability, cost, or expense, including reasonable attorney's fees, arising out of or related to:

47 |

48 | 1. My use, rental, occupancy, or presence at the Camp Property.

49 | 2. The use, rental, occupancy, or presence of any guest, invitee, child, minor, or other person I bring to or allow at the Camp Property.

50 | 3. Any injury, death, property damage, or loss involving me or any person under my responsibility.

51 | 4. Any violation of the rental terms, property rules, safety rules, or applicable law by me or any person under my responsibility.

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53 | ## 7. Responsibility for Guests and Minors

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55 | I am responsible for all guests, invitees, children, and minors who use or occupy the Camp Property with me or through my rental or permission. I agree to inform them of the risks described in this Waiver and to supervise minors and any person who requires supervision.

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57 | I understand that minors may not use the lake, dock, shoreline, kayaks, canoes, paddleboards, boats, or other watercraft without appropriate adult supervision.

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59 | ## 8. No Warranty of Safety

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61 | I understand that the Camp Property is a private family camp with natural and man-made hazards. The Released Parties do not represent or warrant that the Camp Property, lake, shoreline, rocks, dock, watercraft, equipment, buildings, grounds, or surrounding areas are safe, free from defects, or suitable for any particular activity.

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63 | I agree to inspect the property, equipment, and conditions before use and to avoid any activity or area that appears unsafe.

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65 | ## 9. Emergency Responsibility

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67 | I understand that emergency response may be delayed because of the Camp Property's location, weather, road conditions, water conditions, or other circumstances. I am responsible for my own safety, the safety of minors and guests under my supervision, and seeking emergency assistance if needed.

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69 | ## 10. Governing Law

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71 | This Waiver shall be governed by the laws of the State of Maine. Any dispute arising out of or related to this Waiver or use of the Camp Property shall be handled in Maine, unless otherwise required by law.

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73 | ## 11. Severability

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75 | If any part of this Waiver is found unenforceable, the remaining provisions shall remain in full force to the fullest extent permitted by law.

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77 | ## 12. Acknowledgment

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79 | I have read this Waiver carefully. I understand that I am giving up legal rights, including the right to sue the Released Parties for claims covered by this Waiver. I sign voluntarily and intend this Waiver to be binding on me, my heirs, estate, personal representatives, family members, guests, and assigns.

80 |

81 | Renter / User Name: _____

82 |

83 | Rental / Use Dates: _____

84 |

85 | Phone: _____

86 |

87 | Email: _____

88 |

89 | Emergency Contact Name and Phone: _____

90 |

91 | Signature: _____

92 |

93 | Date: _____

94 |

95 | ## Adult Guest Signatures

96 |

97 | Adult Guest Name: _____

98 |

99 | Signature: _____

100 |

101 | Date: _____

102 |

103 | Adult Guest Name: _____

104 |

105 | Signature: _____

106 |

107 | Date: _____

108 |

109 | Adult Guest Name: _____

110 |

111 | Signature: _____

112 |

113 | Date: _____

114 |

115 | ## Minor Participant Acknowledgment

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117 | I am the parent or legal guardian of the minor(s) listed below. I have
authority to sign this Waiver on their behalf. I accept and assume the risks
described above for the minor(s), agree to supervise them, and agree to release
and indemnify the Released Parties to the fullest extent permitted by law for
claims involving the minor(s).

118 |

119 | Minor Name: _____

120 |

121 | Minor Name: _____

122 |

123 | Minor Name: _____

124 |

125 | Parent / Guardian Name: _____

126 |

127 | Parent / Guardian Signature: _____

128 |

129 | Date: _____

130 |

131 | ## Trustee / Rental Record

132 |

133 | Received by: _____

134 |

135 | Date received: _____

136 |